Oregon Department of Human Services

Licensed Child Caring Agency Unannounced Site Visit Report
Residential Care

Licensee: Calo Programs Missouri, Inc., d.b.a. Embark Behavioral Health
Executive Director: Deveney Marshall
Program Director: Amber Hailey

Date of Unannounced: May 13, 2024
Licensing Coordinator: Robin DuVal

Other Regulatory or Accrediting Agencies: Joint Commission Accreditation

Purpose: Per OAR 419-400-0240 (1)(b) Children's Care Licensing is required to perform at least one unannounced site visit a year where children in care reside.

Previous Findings **License Renewal Site Visit 11/06-07/2023**	**Repeat Findings Further Action Needed**	**Comments**
Supplemental Information Provided by CCA All required policies and procedures as identified in the "Umbrella Rules" Upon review of the following policies and procedures, there are minor to moderate edits needed. **Corrective Action:** The agency shall update the following policies and procedures pursuant to each OAR and submit for review. • Conflict of interest in OAR 419-400-0070 • Children Rights in OAR 419-400-0090(1) • Grievance Procedures in OAR 419-400-0090(2) • Mandatory Abuse Reporting in OAR 400-0110(2)(a) • Incident reporting in OAR 419-400-0110(2)(b) • Personnel in OAR 419-400-0120 • Privacy in OAR 419-400-0130 • Suicide Prevention in OAR 419-400-0150(4) • Discipline and behavior management in OAR 419-400-0150 • Transportation in OAR 419-400-0200(1) • Searches in OAR 419-400-0200(2) • Hazards in OAR 419-400-0200(4)	**Yes☐ No✓**	All policies and procedures were updated pursuant to each OAR. *There's no further corrective action needed at this time.*
Supplemental Information Provided by CCA All required policies and procedures as identified in "Agency Type Specific Rules" The agency shall update the following policy and procedure pursuant to the OAR and submit for review. • Medications in OAR 419-470-0110	**Yes☐ No✓**	All policies and procedures were updated pursuant to this OAR. *There's no further corrective action needed at this time.*

Residential Care Safety 419-470-0080(5)(a) Evacuation drill occurs monthly under varying conditions, is retained 2 years and contains: (A) identify of person conducting drill (B) date & time (C) notification method (D) staff participating (E) # of children & staff evacuated (F) special conditions simulated (G) problems encountered (H) time to complete Documentation of evacuation drills were inconsistent. **Corrective Action:** The agency shall ensure the evacuation drill log form includes all required elements noted in (A-H); ensure that evacuation drills occur monthly and are appropriately documented.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*
Medication 419-470-0100(7)(a) Prescription medications that are unused and medications that are expired or recalled may not be maintained with current medication and must be disposed of as described in agency disposal policy. Several bubble pack medications were observed to be unsealed, however there were still pills tucked back in the bubble and/or taped back in. The medication record did not provide a reasoning for any anomalies. Medications that have been popped out of their bubble packs and subsequently not administered to a child in care must not be placed back in the original container. This concern was brought to the attention of the Executive Director and the Nurse and immediately began investigating. **Corrective Action**: • The agency shall ensure staff are retrained and following procedures to dispose of medications when a medication is refused, missed or any other type of medication error that results in a medication not being administered as prescribed and to follow the agency's disposal policy. • The agency shall ensure management oversight occurs regularly to ensure proper procedures are followed.	**Yes☐ No✓**	Medications were observed, and this finding has been corrected. *There's no further corrective action needed at this time.*

Medication 419-470-0100(10) Written record of the administration of medication includes: (a) name (b) description (c) dates and times (d) missed doses (e) medication disposed (f) method of administration (g) ID of person administering (h) possible adverse reactions (i) medication taken outside facility Medications that were not administered, refused, missed or any other type of medication error must be documented. Refer to (7)(c) above. **Corrective Action**: • The agency shall ensure medication errors, or anomalies in documentation, are documented by adding a notation to the medication administration record. • The agency shall ensure staff are retrained and following procedures for proper documentation. • The agency shall ensure management oversight occurs regularly to ensure proper procedures are followed.	**Yes✓ No**	Blanks were observed on the Medication Administration Records (MAR) with no corresponding notation. During the review, this was discussed with the program RN and they will increase their weekly audit to 3-4 times weekly. **Corrective action:** The agency shall ensure medication errors, or anomalies in documentation, are documented by adding a notation to the MAR. ***This is a repeat violation***.
New Employee Orientation – Umbrella Requirements (30 days) 419-400-0120(4) (c) Suicide prevention and intervention The agency shall ensure that all new employees (under Calo Programs Missouri Inc.) complete this training within 30 days of hire, regardless of their prior employment.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*
New Employee Orientation – Residential 419-470-0120(1)(e) Training on the agency's policy on suicide prevention and suicide risk assessment tool. **(Prior to working alone and within 30 days)** The agency shall ensure that all new employees (under Calo Programs Missouri Inc.) complete this training within 30 days of hire, regardless of their prior employment.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*
Consents 419-470-0160(1)(f) Impose a dress code The agency shall ensure consent to impose a dress code is obtained from the child in care's parent/guardian and properly documented.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*
Disclosures 419-470-0160(2) Parent/guardian has acknowledged in writing: (b) Statement of Rights of Children and Parents/Guardians The agency shall ensure this disclosure is provided and properly documented indicating that the parent/guardian has acknowledged.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*

Disclosures 419-470-0160(2) Parent/guardian has acknowledged in writing: (c) Any policies and procedures upon request The agency shall ensure this disclosure is provided and properly documented indicating that the parent/guardian has acknowledged.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*
Information about Children in Care 419-400-0190(1) Summary sheet contains the following: (a)The name, gender, date of birth, religious preference, and previous address. The agency shall ensure an entry is noted for religious preference. While on-site, the agency discussed ways to incorporate that into their electronic system in the demographic page.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*
Information about Children in Care 419-400-0190(1) Summary sheet contains the following: (b) Name and location of previous and current school • The agency shall ensure this information is obtained and documented. • While on-site, the agency discussed ways to incorporate that into their electronic system in the demographic page.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*
Information about Children in Care 419-400-0190(1) Summary sheet contains the following: (d) Legal custody The agency shall ensure an entry is noted for legal custody. • While on-site, the agency discussed ways to incorporate that into their electronic system in the demographic page.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*
Case Management 419-470-0170(3)(c) Discharge planning evaluations and decisions are documented. The agency shall ensure discharge planning evaluations, decisions, etc. are captured and documented.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*
Records Relating to Restraint & Involuntary Seclusion 419-400-0180(13)(e) Each child caring agency shall provide notice regarding how to access the quarterly reports to the parents or guardians of children in care in the program. The child caring agency shall provide the notice upon the child in care's admission and at least two times each year thereafter. This requirement is not met in its entirety. The agency shall update the notice and submit for review.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*

Records Relating to Restraint & Involuntary Seclusion 419-400-0190(1) Information provided to children in care relating to Restraint & Involuntary Seclusion This requirement is not met in its entirety. The agency shall update the notice and submit for review.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*
Financial Records 419-470-0170(4) Records contain date, amount, source, purpose, signatures. A small amount of cash was discovered after a child's admission process, and it was placed in a baggie labeled with the child's name and stored in the office. **Corrective Action:** • The agency shall create a financial record log to document any monies belonging to a child in care. The form must include all elements notes in this rule. Note: Typically, the program does not allow cash, however a log is required in the event **Comment:** The agency has a process for in-program earnings for each child in care which translates into money on a debit card that's specific to each child to use on store outings. The agency provided documentation outlining how the debit card system works and how it's tracked.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*

Comments
While on-site, this licensor and the Program Registered Nurse (RN) who oversees all medication policies, procedures, practices, etc. discussed options regarding their practice of securely storing unused medications that were being held to return to the guardian. It was decided that this practice will stop, and the stored medications at the time of this review will be destroyed utilizing the disposal procedures, and the guardians will be notified. Going forward, any unused medications will be timely destroyed in accordance with disposal procedures. **Action:** The RN will update policies and procedures and update all other intake paperwork referring to the practice,

New Findings from Site Visit
None

Interview Summary
Two youth were individually interviewed, both ages 13, who had been in the program approximately 22 and 83 days. Both reported that staff are trusting, the food and chef are good, school is going ok, and they get their medications as prescribed. They feel generally safe, Activities in the program and outings were described. Due to some other youth's behaviors, it can be challenging day-to-day to tolerate, but the staff make efforts to separate in groups when possible. They report having regular contact with approved people outside the program, such as family, and have privacy unless it's in their plan to be monitored for safety reasons. When asked to describe "monitoring", they said a staff person sits on the stairs while youth are in the downstairs living room to monitor but not actively listening. They report the program does well at keeping a routine and schedule and accommodating each youth's needs. The program could improve on having more staff, especially during times when 1-2 other youth are dysregulated. This would provide more ability to separate youth from youth who are dysregulated, so the other youth aren't triggered.

Observations
This program has a home-like environment in one building consisting of two dorm-like wings with the dining room in between. An adjacent building houses the therapists' offices with along with a milieu space. Youth bedrooms, dorm rooms, bathrooms, living rooms, kitchen, dining room, and the medication room were observed to be clean, odor-free, and in good condition. A variety of food was observed in appropriate food storage areas. Staff were observed interacting with youth, as well as other administrative staff, and staff were welcoming. The outside grounds are maintained with areas of green grass, pavement, and gravel areas for outside activities.

Corrective Actions and Timeframes: Please submit the following to verify compliance.

Within 45 days of receipt of this report **Calo Programs Missouri, Inc.** must submit a letter of verification indicating the agency is in compliance with the specific rules cited above and describing how compliance will be maintained going forward. Along with the letter of verification, the agency must submit any and all specific documentation requested in the body of this report. The letter of verification and any additional requested documents are to be emailed directly to Robin DuVal at robin.m.duval@odhsoha.oregon.gov.

Licensing Coordinator's Signature: Robin DuVal Date: 8/12/2024

Manager Review: _____ Date: 8-12-2024